

RESEARCH QUESTION

Are International Courts and tribunals effective tools for International Organisations? Evidence of the International Criminal Tribunal for Rwanda (ICTR) in Arusha, Tanzania.



Acknowledgments

I wish to extend my personal and sincere thanks to Richard Karegyesa, Acting Chief of Prosecutions for the International Criminal Tribunal for Rwanda, for giving me such precious information and for answering my questions in order to get a deeper understanding on the subject.

Abstract

International Law has been in constant evolution since the establishment of the International Military Tribunal of Nuremberg after WWII. The International Criminal Tribunal for ex-Yugoslavia and Rwanda are at the end of the cumulative process that led to the establishment of the Permanent International Criminal Court in 2002 (Andersen, 2009:3-19). The number of International judicial bodies has been steadily growing but are they effective tools for International governance? This paper will have for main argument that although International Courts and Tribunals contribute to post-conflict peace building, the fulfilment of their task is constrained by numerous structural factors, which in turn critically reduce their effectiveness. The two parts of this paper bring together theoretical and empirical evidences demonstrating organizational issues affect the independence and the impartiality of International Judicial bodies, which in turns decrease their legitimacy and credibility.

ABBREVIATIONS AND ACRONYMS

IC International Court

ICC International Criminal Court

ICCJ International Criminal Court of Justice

ICT International Criminal Tribunal

ICTR International Criminal Tribunal for Rwanda

ICTY International Criminal Tribunal for ex-Yugoslavia

ICJ International Court of Justice

IOs International Organisations

UN United Nations

CONTENTS

<i>Description</i>	<i>Page</i>
Abstract	3
Abbreviations and Acronyms	4
Table of Contents	5
Introduction	6
 PART I: What function for ICC and ICT?	
<i>Arguments over International judicial bodies' function</i>	7
<i>What kind of tools are ICC and ICT?</i>	8
<i>Literature Review: Constraining Factors</i>	11
<i>Delegation of power & Principal-Agent theory</i>	13
<i>State Cooperation: Political Organs?</i>	16
<i>Conclusion</i>	18
 PART II: The Case of the ICTR	
<i>Introduction & Background</i>	19
<i>Methodology</i>	21
<i>Goal-Based Approach – Yuval Shany</i>	21
<i>Theory of Bounded Space – David Caron</i>	23
<i>Constrained Independence</i>	24
<i>Discussion</i>	27
Conclusion	29
<i>Bibliography</i>	30

Introduction

Effectiveness is defined as “the degree to which something is successful in producing a desired result; success” (Oxford Dictionary, 2015). For International Judicial Bodies¹ such as International Courts and Tribunals, their effectiveness would therefore be measured by evaluating the fulfilment of their task. Divided in two main parts, this paper will have for main argument **although International Courts and Tribunals contribute to post-conflict peace building; the fulfilment of their task is constrained by numerous organizational factors, which in turn critically reduce their effectiveness.** This essay will therefore not focus on the effectiveness of ICC and ICT but on the several causes limiting it. Furthermore, although international law will be present in several sections this paper, the main argument will be defended from an organizational perspective not a legal one.

The first part will first offer several contrasting arguments from the different school of thoughts over International jurisdiction and the role of International Judicial Bodies. The second section will then elaborate on what functions ICC and ICT have as well as discussing their desirability. The last section of this first part will embody a literature review examining the main constraining factors critically affecting the effectiveness of ICC and ICT.

The second part of this essay will take the form of a Case Study about the International Criminal Tribunal for Rwanda. The same factors analysed theoretically in the first part will be applied to the case of the ICTR using three different approaches proposed by scholars. The Case study will end by a discussion of the results observed in the previous sections. Finally, a final conclusion will be taking into account both the theoretical and empirical parts the main argument upheld in this paper.

¹ Throughout the different parts, the term “International Judicial bodies” will be employed in reference to international courts and the two ad hoc tribunals (the *International Tribunal for the Law Sea* will be the exception and not be included).

PART I: Theoretical Approach: What functions? What limits?

Arguments over international governance through International Judicial Bodies

Arguments over international governance have been generally diverging from one international theory's school of thoughts to another. It is not surprising to observe the same situation when dealing with the question of international jurisdiction.

On one hand, realists believe "normative convergence notwithstanding, sovereignty and self-help still dominate states' actions: states seek to use the Court (International Law) for their own purposes, and alternative priorities mean that even its supporters' attention wanders" (N.Schiff, 2008:34). De-Constructivists affirm International Courts and Tribunals "were never conjured up to really function"(Ibid). They interpret the creation of such bodies as mainly symbolic gestures that were established out of a sense of guilt.

On the other hand, Constructivists argue, "International Criminal Courts and Tribunals are products of the international normative shifts towards individual accountability and restorative justice" (Ibid: 35). Lastly, liberalists defend international governance essential for cooperation and blame numerous factors such as "a lack of enforcement capacity, official's and interlocutors' differences of view over priorities within the mandate, and a lack of direction from states" (Ibid: 32) for the international judicial bodies' failures.

Even though opinions are conflicting over the use of international judicial bodies, the different international theories defenders tend to agree on what international judicial bodies' function is.

Realists interpret international courts and tribunals' role as having an ultimate function of mediator "at one end of a conflict resolution spectrum" (Caron, 2006: 410).

In other words, Realists believe International courts have been created to assist two disputants to reconstruct peace after a conflict. Institutionalists share this realist' view as they describe International Courts and Tribunals as "institutions whose function is to resolve particular

disputes (using international law)”(Ibid: 410). Finally, Constructivists defend a “broader view” by adding to the peace building role, functions such “as norm creation, augmentation and diffusion.”(Ibid: 410)

Those several views over International Courts and Tribunals appear to agree on at least one function of the international judicial bodies: international peace builders.

What kind of tools are International Court and Tribunals

Functions of International Courts and Tribunals

The sections following will attempt to explain what kind of tools International Courts and Tribunals are for International Organizations using literature.

Defining clearly what functions International judicial bodies have is essential since their effectiveness will be measured by reference to the completion of their task. As previously explained, most scholars agree on that the function of IC and ICT is primarily to resolve conflict by acting as a mediator and an arbitrator between the two disputants.

Yet, even though they agree on that primarily role, most of them also believe this is not the **only** function International judicial bodies possess. In 1998, Sarroshi developed an argument explaining ICC and ICT were also created to “developed and enhanced the enforceability of certain legal norms, reflective of important common values” (Sarroshi, 1998: 388), which, according to the author, makes of their dispute resolution role a “relatively modest” one.

In 2014, Yuval Shany defines International Courts as “judicial bodies capable of enforcing international commitments, interpreting international norms, setting international conflicts” (Shany, 2014: 44). This demonstrates that with time, scholars have kept similar descriptions of what International judicial bodies’ functions were and also emphasize that being a dispute resolution body is certainly not the only one.

“Peace building” and more?

ICTY and ICTR are the two first ICT established as *UN subsidiary organs* under the Chapter VII of the Charter by the Security Council. Meaning the two ICT are an integral part of the United Nations. As criminal courts, they possess jurisdiction over individuals in their specific context (Sarrosi, 1998: 388). Their establishment was intended to replace or complement *ineffective* domestic legal systems in both Rwanda and ex-Yugoslavia (Heikkila, 2009: 27).

According to Ryngaert, such International judicial bodies demonstrate the international community’s will to “take collective action to put an end to impunity and to enhance individual criminal accountability” (Ryngaert, 2009: 118). Erik Andre Andersen recognizes this task as their most important legacy: international Criminal Tribunals attribute “*individual* instead of collective guilt by meeting out *individual* criminal justice. Peace building is thus possible in a war-ravaged former”(Andersen, 2009: 26).

In other words, International Criminal Tribunals for Yugoslavia and Rwanda have for functions not only to act as “peace and reconciliation-promoting instruments”(Ryngaert, 2009:118) but as well as to promote the rule of law and Human Rights protection.

As found in the Secretary-General’s report to the Security Council concerning the establishment of ICT:

“The International Tribunal should be established by a decision of the Security Council on the basis of Chapter VII...Such a decision would constitute a measure to *maintain or restore international peace*... (The establishment of the Tribunal would be justifiable) in terms of the object and purpose of the decision (to maintain or restore international peace)”
(Doc.S/25704,7 UN)

As previously discussed, scholars have more or less the same general view on what functions ICC and ICT possess as International judicial bodies. Yet, controversies between scholars seem to erupt when the discussion shifts to the growing number of such bodies being established as well as “the effects of the multiplication of such bodies” (Kingsbury, 1999: 680).

Yet, if as previously explained, ICC and ICT have for main role to help restoring peace; why would their multiplication be a problem? The introduction of this paper described through a historical approach the increasing number of international judicial bodies established. This phenomenon is seen as a “proliferation” problem in the eyes of some (Ibid) or as “a facilitator for the development of international law and smooth cooperation” for others (Shany, 2014: 25).

The opponents to the increasing number of ICC and ICT being established those past years argue such bodies (at the exception of ICJ) have been established within a *particular* context. In that sense, they generally are *subject-matter* oriented and also *regionally* confined. Within that “confined shell, the relevant rule of law in the context of the specific subject-matter of the instrument creating the court will play a major role in the decision-finding of the court” (Oellers-Frahm, 2001 69). For Karin Oellers-Frahm, this diversity makes it difficult for International courts and tribunals to “preserve the uniformity of international law” (Ibid).

Conversely, Georges Abi-Saab, professor in International law, explains “every legal order generates and specifies its rules in different ways, with different results, and these rules and procedures ultimately derive their legitimacy from the fact of belonging to this legal order” (Abi-Saab, 1999: 921). For that reason, doubts expressed on the International judicial system’s ability to function with numerous context-specific bodies would be unfounded since in the end, ICC and ICT defend the same legal order: international law. Abi-Saab further explains the International judicial system may be varied and diverse, yet, the different judicial bodies’ legitimacy and physiognomy are derived from the same legal system they all belong to. They form an entity held together by its own internal cohesive forces, such as the international judicial bodies, but is still separate and distinguishable from the other legal orders. He interprets the different international judicial bodies as forming a constellation (by definition correlated) (Abi-Saab, 1999: 925). Yuval Shany calls this occurrence an “emerging rule-based international order”

which is a healthy phenomenon as it specialized mechanisms such as ICT it enhances global cooperation by promoting international law (Shany, 2014: 53).

What seems to be the issue for most scholars is not about the “intrinsic desirability of creating such institutions” (Kingsbury, 1999: 694) considering their positive contribution for global peace but about the problems to which their presence spread may generate.

Literature Review: Constraining factors

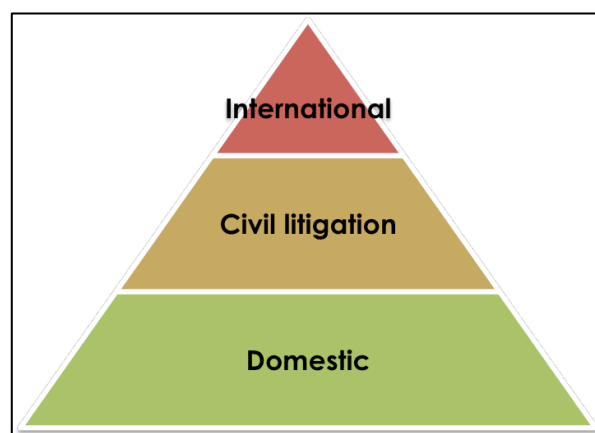
The previous section depicted what functions ICC and ICT had as international judicial bodies. The following section will explore how ICC and ICT have been delegated the power by state and IOs to fulfil their task first from a legal perspective and then from an organizational one.

Legitimacy Capital

There exist three different jurisdiction levels: domestic – civil litigation – international (Warioba, 2001: 43). From a judicial perspective, it is important to determine the nature and the scope of powers with which the tribunals have been entrusted based on the Chapter VII.

As Sarooshi explains in his article *The Statute of the International Criminal Court*”, the content of

powers, expressed or implied, that tribunals can exercise is determined in their respective statuses”(Sarroschi, 1998: 388).

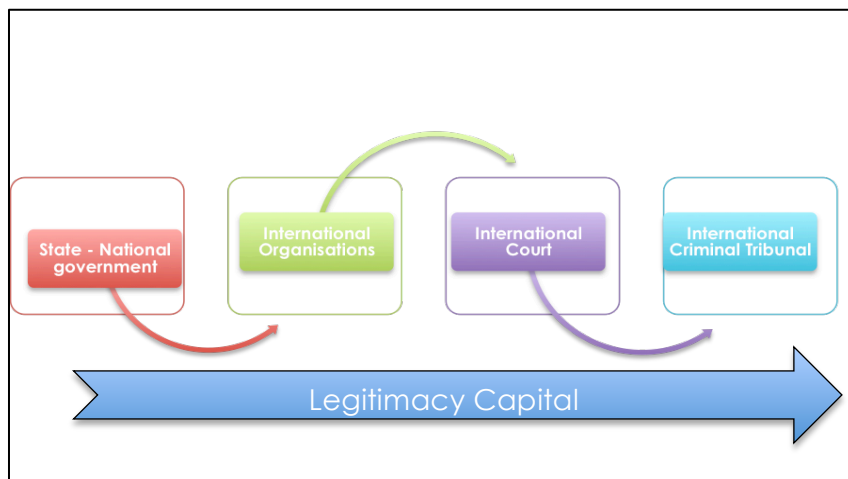


Graph 1: Jurisdiction levels

Yet, the following analysis will examine the delegation of power from an organizational perspective. ICC and ICT appear to be supranational actors considering their scope of powers. A supranational is defined as “a particular type of IOs that is empowered to exercise directly some of the functions otherwise reserved to states” (Slaughter, 2006: 274). Depending on how great the transfer or the limitation on state sovereignty is, an International Organisation will be

considered as a supranational (e.g. European Union). In their work, Slaughter and Helfer consider ICC and ICT to be “Supranational Adjudicators” because they were established by a group of states or by the entire international community and possess jurisdiction over cases directly involving a private party and a prosecutor’s office (Ibid: 275).

This delegation of power from national governments to IOs constitutes for Yuval Shany the *traditional justification* of their establishment and their “exercise of public authority at the international level” (Shany, 2014: 40). In other words, ICT have been created purposefully which logically make most of their **legitimacy capital**.



Graph 2: Legitimacy Capital

Paradigm of delegation

As mentioned beforehand, the states were the one establishing the ICT which logically give the latter a legitimacy capital. However, before looking at the delegation between the state and the international judicial bodies, the following section will explore what power has been delegated to ICC and ICT by the Security Council.

As a principal organ delegating power to its subsidiary organ, the Security Council delegates inherent judicial power to ICC and ICT. Thus, International Tribunals possess an “ancillary or incidental mandatory power” (N.Schiff, 2008: 54) vis-à-vis States; a necessary power to exercise judicial functions. Moreover, subsidiary organs have been delegated a **power of binding decision** intended to bind the Security Council (principal organ), the other UN organs and the UN member states (N.Schiff, 2008: 56). This measure is taken by the Council depending on its necessity for “the maintenance of peace and security” (Sarooshi, 1998: 340).

The Secretary-General stated on the case of the ICTR:

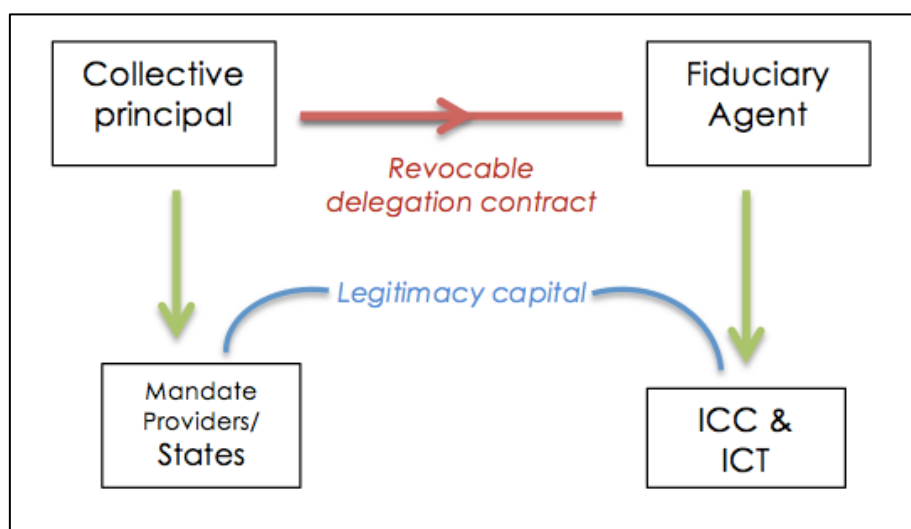
“(it) is a subsidiary organ of the Security Council... As such, it is dependent in administrative and financial matters on various UN organs; as a judicial body, however, **it is independent of any one particular State or group of States, including its parent body the Security Council.**” (Doc.S/1995/134,para.8)

In the words of Sarooshi, “ICC and ICT were established as independent judicial bodies pronouncing final judgments without external review of their decisions within the limited field of their functions” (Sarooshi, 2001: 145). Although the Security Council could still change the “scope of a Tribunal’s delegated mandate”(N.Schiff, 2008: 55), the degree of independence prevents other organs or members states to review individual decisions of the Courts or Tribunals.

Principal-agent theory

In *Delegation to International Courts and the Limits of re-contracting political power*, Karen J. Alter recognizes the delegation of power from the national governments to the International Criminal Courts and Tribunals as a clear example of the *principal-agent theory*.

In regards to International jurisdiction, the *collective* principal (States) decides to delegate judicial power through a “revocable delegation contract” to their agent (International Courts or Tribunals) (J. Alter, 2006: 314).

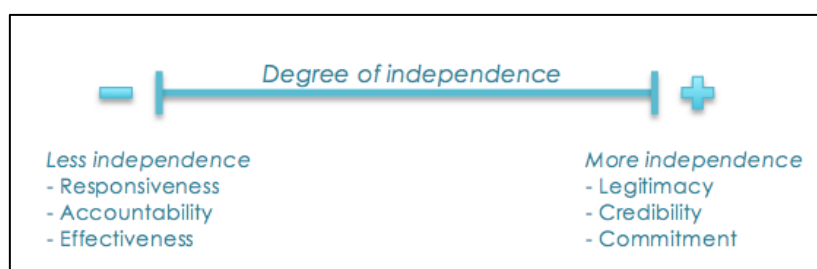


Graph 3: Paradigm of delegation

On the principal-agent theory, Majone explains, “an Agent bound to follow the directions of the delegating politician could not possibly enhance the commitment” (Majone, 2001: 105). As fiduciary agents, ICC and ICT need to demonstrate their independence and impartiality from states, to be credible and stay neutral actors. On this point, Karen J. Alter asserts International Courts are among the *most independent* agents (J. Alter, 2006: 314). In other words, the International Courts and Tribunals enjoy autonomy from the consent of the State in order to exercise their judicial functions in court. Yet, International judicial bodies are not independent as such from States since as a judicial institution, there exist “necessary limits on what power the Tribunals may exercise” (Sarooshi, 1999: 341). For instance, States can decide, “to rewrite a

mandate of an IC, make legislation to reverse the rulings of the IC or accusing the IC of non-compliance” (Slaughter, 2006: 243).

On the other hand, ICC or ICT have the power to impose judgments that should be enforced yet, “enforcement is carried out by states under agreement”(Warioba, 2001: 45). Meaning enforcement at the national level of International judicial bodies’ binding decisions is hardly certain. As Warioba states “there is no certainty that binding decisions of international courts can be complied with and there is no machinery for enforcement”(Ibid). This issue looking at compliance with and enforcement of international courts’ binding decision confirms for the author that International Law remains a “compliance-based system not an enforcement-based system”(Ibid). As a principal, States appear to have quite a large scope of mechanisms that threat ICC and ICT’s independence.



Graph 4: Degree of Independence

So how much autonomy should we expect IC to have? This question generates numerous differing arguments among scholars. Although some recognize the independence given to ICC and ICT as making their role credible and legitimate (Slaughter, 2006: 251), some argue the significant autonomy and discretion such bodies possess is increasing the risk of this independence being constrained by “legitimacy pressures” from mandate providers (Shany, 2014: 243)(Yoo, 2005: 56). In her article, Karen J.Alter concludes those varying opinions are not being inconsistent as such but because each judicial body has “different institutional rules that point in opposite predictive directions”, there is not one argument that could apply for all Courts and Tribunals (J.Alter, 2006: 336).

State Cooperation: Political Organs?

Consistently with the previous points, it appears ICC and ICT are directly dependent on state cooperation to be effective in the exercise of their functions. From a judicial perspective, Mikaela Heikkilä explains there exists a significant difference between domestic and international courts: their linkage to another system of authorities (Heikkilä, 2004: 24). More clearly, the police or other social service providers directly support domestic courts whereas ICT do not have any “established” service providers (e.g. dealing with extra costs) since they are not part of a criminal justice system as such. Because of this great dependence, the extent of States support and cooperation (as collective principal and mandate providers) has a “great impact on the International Courts and Tribunals’ legitimacy and their ability to attain any set of goals” (Shany, 2014: 102).

Poor state cooperation entails directly the exercise of international judicial bodies by, for example, limiting the access to significant evidence or by leaving indicted individuals free to go. To “protect” Courts and Tribunals against such actions, the international community cannot do much more than putting political pressure on the concerned State(s). Yet, as for any International Institutions, States cannot be forced to cooperate “even if legal obligation exists” (Heikkilä, 2009: 25).

“The obligation (on States) to lend cooperation and judicial assistance to the International Tribunal (...) is laid down in Article 29 and restated in paragraph 4 of Security Council resolution 827 (1993). Its binding force derives from the provisions of Chapter VII and Article 25 of the United Nations Charter and from the Security Council resolution adopted pursuant to those provisions. The exceptional legal basis of Article 29 accounts for the novel and indeed unique power granted to the International Tribunal to issue orders to sovereign States (under customary international law, States, as a matter of principle, cannot be ‘ordered’ either by other States or by international bodies).”

Prosecutor v. Tihomir Blaskic, Judgment on the Request of the Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, 29 March 2015. (IT-95-14-AR108 bis, para. 26)

This generates another dilemma: “how ICC and ICT can achieve good cooperation without sacrificing their independence and impartiality?” Warioba claims, “if tribunals function in a context in which they must take into consideration *certain political realities*, it entails that the international tribunals *per definition* are unduly politicized” (Warioba, 2001: 44). In his opinion,

International law implies this dependence on States' consent. Thus, he believes global judicial institutions should be regarded more as political than judicial organs. He justifies this argument by giving examples such as the

“underlying distrust of the composition and the method of election – enormous political influence (appointed by the mandate providers), the un proportional representation (more western than smaller countries judges) or that any party to a dispute has the right to appoint an *ad hoc* judge if there is not a national representative in the court which gives the perception that a state cannot trust the court unless it has its own representative and reinforce the perception that the Court lacks judicial independence.” (Ibid: 45-46)

A more concrete example would be the use of prosecutorial discretions during the ICTR. The Tribunal has not prosecuted crime committed by the Rwandese Patriotic Front that was the new government established after the genocide. This measure can be seen as an action taken to ensure the good state cooperation (Heikkila, 2009: 34). Many scholars approach this issue of dependence on States' continuous support and cooperation as one of the main flaws for International judicial bodies to fulfil their task.

In *Enhancing the Effectiveness of International Dispute Settlement*, Watts brings up another major obstacle for any International judicial bodies to function: International community's interest. As a matter fact, the establishment of International Courts or Tribunals itself depends completely on the international community's will to do so. Watts even affirms the effectiveness of International judicial dispute settlement procedures depends on “the international community's real commitment to do so” (Watts, 2001: 23). He ends critically affirming “international judicial bodies remains largely “add-on extra” to the main structures of the international community: if they really want that result, there are ways and means by which they can achieve it”(Ibid: 27). This argument makes of ICC and ICT “passive” instruments that essentially depend on their creators' will to be effective.

Conclusion

Through this literature review, the main factors that have an impact on the effectiveness of International judicial bodies were explored. From the different arguments of scholars, some open conclusions can be made concerning the effectiveness in theory. ICC and ICT are facing numerous constraints notably regarding their degree of independence, essential state cooperation and the international community's interest. From a theoretical point of view, scholars agree on that ICC and ICT have for principal role to help peace building but disagreements remain on how much independence ICC and ICT should have to fulfil this task effectively. Their legitimacy, credibility and accountability seem to be constantly pressured considering the numerous constraining factors implied by their positions as supranational adjudicators and fiduciary agents. The effectiveness of such judicial bodies seems therefore to depend on context-specific variables meaning one ICC or ICT can be more effective than another specific situations. This present idea will be tested in the second part of this paper using the case of the International Criminal Tribunal for Rwanda (ICTR).

PART II: Empirical evidence: The Case of the ICTR

Introduction

The International Criminal Tribunal for Rwanda is the last Tribunal that took place from 1994 to 2012 (UN website, ICTR). The *ad hoc* Criminal Tribunal for Rwanda and ex-Yugoslavia are among the last judicial bodies created. For that reason, they represent the “most evolved” judicial mechanisms that led to the creation of the International Criminal Court of Justice. Evaluating the effectiveness of the ICCJ seemed unrealistic notably because of its recent establishment and the lack of empirical evidences at reach. Although scholars’ work on compliance with and binding decisions is consistent, research on the actual empirical impact of International Judicial bodies is in general still lacking. Evaluating the effectiveness of such bodies empirically remains difficult since many factors can have an impact on the exercise of their judicial functions as seen in the previous part. Also, this empirical research will be limited to the case of ICTR due to the characteristic of such judicial bodies that are context-specific. Thus, it would be incorrect to generalize the results presents here to all international judicial institutions.

Background - International Criminal Tribunal for Rwanda (ICTR)

The ICTR was established in 1995 to "prosecute persons responsible for genocide and other serious violations of international humanitarian law committed in the territory of Rwanda and neighbouring States, between 1 January 1994 and 31 December 1994" (UN website, ICTR). The Tribunal itself was located in in Arusha, Tanzania, and the Appeals Chamber was established in The Hague, The Netherlands.

The genocide was the cumulative point of the Rwandese ethnic conflict that found its roots partly during the Belgian colonisation. The latter polarized the population by favouring one ethnic group over the others. From Rwanda’s independence in 1961, confrontations between the ethnic

groups generated considerable tensions that spread into neighbouring countries as many Rwandans refugees escaped their country. The conflict erupted in genocide where nearly one million Rwandans died in the massacre, from April 1994 until June 1994. The United Nations was largely criticized for its inaction to stop the killings.

Like most of International Judicial bodies, the establishment of the ICTR was precipitated by the crisis but did not prevent atrocities. From a pragmatic point of view, critics such as José Alvarez denounces that the ICTR was established in Tanzania which made this public demonstration of justice “virtual” for many Rwandans, the absence of Rwandan judges present in the Tribunal and the selection of “only certain internationally-opprobrious offenses committed within a politically convenient time period”(Alvarez, 1996:366).

To these arguments, Richard Karegyesa explains: « Rwanda was peculiar, extremely polarized. To give it a semblance of justice, you know, I think it was, in the initial stages an imperative that Rwandans be excluded from the decision making process. I mean we had all the local staff were Rwandans, but none of the prosecutorial staff were Rwandans. » In that sense, ICTR favoured “ethnic neutrality” and the application of “uniform international norms”. He further continues « at the establishment of the tribunal Rwanda was still relatively unstable and had no infrastructure nor human resources to host and run the, the tribunal in Kigali. And that’s why the tribunal was situated in Arusha. » (Interview with Richard Karegyesa)

From the official ICTR’s website, we get the official numbers of judicial procedures.

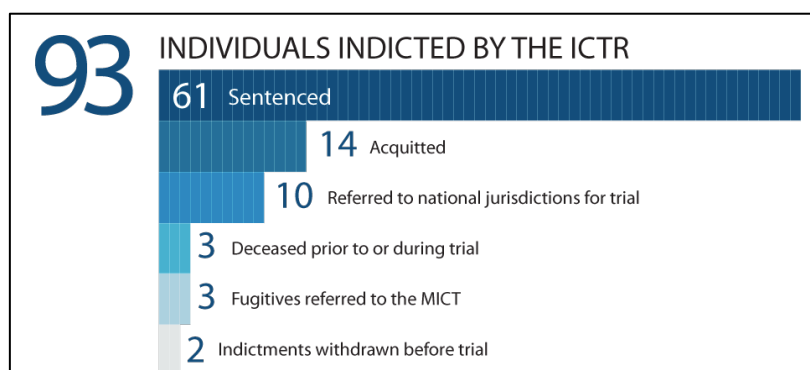


Figure 1: UN website/ ICTR in brief

Methodology

The empirical approaches that follows attempt to evaluate several factors that constrained the ICTR's effectiveness. To evaluate the effectiveness of the ICTR, the method undertaken by scholars is "to compare the stated aims and the anticipated results with the realization of those aims and actual results" (Heikkila, 2009:43) of the tribunal. From there, scholars offer different theories focusing on specific aspect of an ICC or ICT. Therefore, three aspects of the ICTR will be empirically evaluated using those theories. Each of them will be applied to the ICTR using literature and the interview with Richard Karegyesa, the Acting Chief of Prosecutions for the ICTR.

Goal-Based Approach – Yuval Shany

Yuval Shany presents in his work another modern approach to evaluate the effectiveness of International judicial bodies adapted from the social science literature on organizational effectiveness. His approach offers a good base for our research as it presents a method to synthesize the different goals of institutions such as ICTR. The main idea is to compare the desired outcomes with the actual impacts of the institution. For Shany, "effective international courts and tribunals are courts that attain (within a predefined time period) the goals set for them by their relevant constituencies"(Shany, 2014:134).

Identification of the goal-setters whose choices and expectations (interests and wishes) should inform the multiplicity of stakeholders:

In the case of the ICTR, the mandate providers were the UN (Security Council) and the Rwandese Government. As explained in the theoretical part of this paper, the principal-agent theory justifies the delegation of power from IOs and member state to the Tribunal, which gave the latter its legitimacy capital. The position of the RPF as an ex-rebel group becoming head of

the Rwandan government also impacts the position of the UN (supporting a “rebel group” at the head of a developing country can be problematic facing the ideals of the IOs).

From those different stakeholders, the ICTR was bound as a fiduciary agent to “follow the mandate conferred on them by the mandate providers, and the process of goal settings tend to be transparent and to correspond to widely held conceptions of socially desirable ends”(Ibid: 136).

The author identifies four generic goals of International courts and Tribunals:

1. Norm Support
2. Resolving International disputes and problems
3. Regime Support
4. Legitimizing public authority
5. Idiosyncratic goals

By applying those to the ICTR we get a good synthesis of the different stakeholders' expectations:

1. Establish legal norms by upholding the rule of law and establishing order
2. Establishing a peace-building process after the genocide in Rwanda
3. Showing support and commitment to the Rwandese government
4. Public demonstrations of justice
5. Deliver verdicts in relation to a genocide, hold members responsible for acts of genocide through mass-media use.

Theory of Bounded Strategic Space - David C. Caron

David C. Caron examines ICC and ICT as a particular form of international institution. In other words, he analyses legal content using the perspective of political science and international relation theories. The theory of Bounded Strategic Space focus on “the interactions of five or less different groups of actors *within* and *against* the bounded Strategic Space defined by the constitutive instrument establishing the international court and tribunal”(Caron, 2006: 409). Judicial rules of procedure used become “the legal expression of the political efforts of the present groups to control the influence of the other on the operation of the court or tribunal”(Ibid: 410). Each group of actors have their institutional position, are motivated by the logic of that institutional position and seeks to advance its logic by influencing, or limiting the influence of other institutional positions.

In relation to this theory, the ICTR was, for many, created by shame for not acting before the killings. The international community’s interest was to “apologize” for not preventing the events. For others, it was as a “response to the demand that the developed world be consistent in its treatment of greater Europe and Africa”(Booth, 2003: 159). David Caron brings up an interesting point: ICC and ICT are serving political functions that can be “unwritten” and different from those stated in their mandates. International Courts and Tribunals’ functions are not only to “fulfil constituted ends but also how well it serves the unstated purposes”(Caron, 2006: 415).

Constrained Independence

Open System Approach – Oran Young

Oran Young defines effectiveness as a “measure of the role of social institutions in shaping or moulding behaviour in international society”. His approach suggests that “an effective organization is one that interacts in a well-balanced and sustainable manner with its environment” (Young, 1992: 170) which relates to its ability to manage its degree of independence.

For our research, it would be problematic to use this approach, as it requires identifying all the impacts of the ICTR in its complex environment including not only the international community and the international organisations but also private actors.

Independence vs Dependence – Posner and Yoo

Posner and Yoo’s explain a certain control of the national government on the tribunal is necessary for its effectiveness. For them, “only effective tribunals are dependent tribunals, by which they mean ad hoc tribunals staffed by judges closely controlled by Governments through the power or threats of retaliation.” They claim control of International Tribunals by the state is crucial to not “pose a danger to international cooperation”(Posner, 2005: 8).

Constrained independence - Slaughter and Helfer

Slaughter and Helfer’s approach is the direct counterargument of Posner and Yoo’s theory as they explain the effectiveness of a supranational tribunal by measuring “its ability to compel compliance with its judgments by convincing domestic institutions, directly and through pressure from private litigants, to use their power on its behalf”(Slaughter, 2006: 281). Therefore, they consider legitimacy and authority as essential constituents for a Tribunal to be

effective. Their empirical research highlighted the importance of “making states’ binding decisions legally binding on the parties to the dispute before it (ICT)”(Ibid: 282).

Those three approaches relates to the degree of independence evoked in the theoretical part of this paper. The balance between independence & impartiality on one hand and responsiveness or accountability (judicial effectiveness) on the other hand remains problematic to achieve in several cases (Sarooshi, 1998: 403). Yuval Shany asserts on the degree of independence “the more the actual exercise of foundational jurisdiction depends upon the consent of the parties to the case, the more these parties are in a position to exert on going formal and informal control over the operation of the relevant international court”(Shany, 2014: 140).

In the case of the ICTR, in several cases, the judicial process of the Tribunal threatened to clash with the political circumstances that allowed the creation of the tribunal which generate political pressure from the national government. In her biography, Carla Del Ponte, Chief Prosecutor of the ICTR, tells how the Tribunal encountered such strong political resistance.

Case of Jean Bosco Barayagwiza

Jean Bosco Barayagwiza was one of the suspects in the *Radio Mille Collines* case (a mass-media that incited to genocide). On November 3, 1999, The ICTR’s Appeals Chamber “dismissed the indictment and ordered his release”. The Appeals Chamber made its decision on violation of “the due process rights of the accused that the Prosecution committed”. The reaction of the Rwandan authorities was critical as it suspended all cooperation with the Tribunal (cutting short the Tribunal’s ability to access evidence and witness for all pending trials, and effectively cutting the Tribunal’s lifeline)(Del Ponte, 2009: 56).

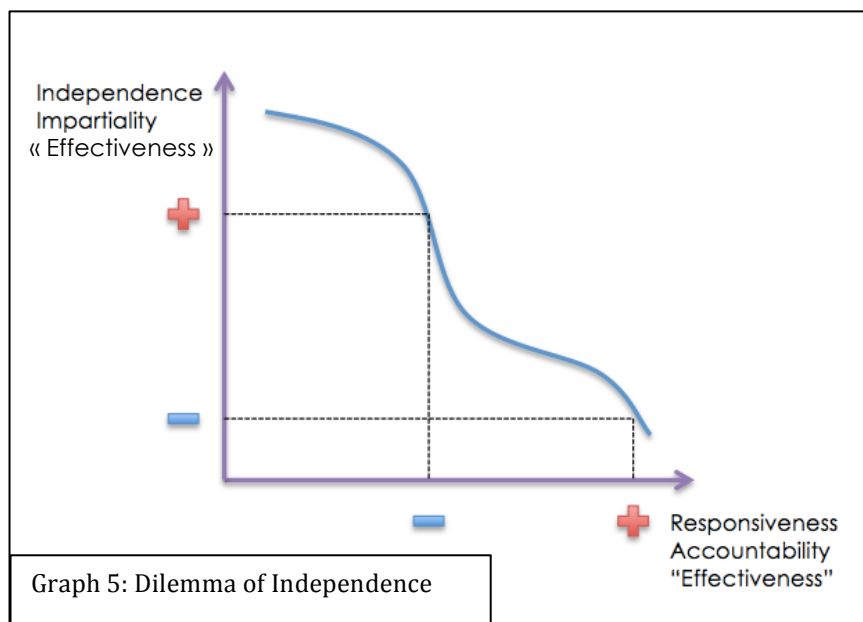
In face of this dramatic situation, Carla Del Ponte submitted an “extraordinary motion” to review the decision to release the accused which directly engendered a legitimacy cost for the ICTR.

“But (she) was more concerned with the real danger that, because of the Barayagwiza fiasco, the Rwandan government would retaliate against the Rwanda Tribunal itself by permanently refusing to cooperate with its work; this would deal a major setback to the cause of international justice in general.” (Del Ponte, 2009: 73)

Even though the Appeal Chamber decided to reopen the case and to reinstate the procedures against Jean Bosco Barayagwiza, it issued a statement on the ICTR’s judicial independence:

“The Appeals Chamber wishes to stress that the Tribunal is an independent body, whose decisions are based solely on justice and law. If its decision in any case should be followed by non-cooperation, that consequence would be a matter for the Security Council.” (Appeal Chamber, A/69/206-S/2014/546)

This situation has affected the judicial independence and impartiality (effectiveness), as it had to offer a higher degree of responsiveness to the Rwandese government, which in turn decreased its perceived judicial legitimacy.



The graph above shows how the relationship between judicial independence & impartiality and judicial effectiveness cannot be linear as the responsiveness fluctuates in function of the state’s more or less subtle messages and signals (Sarooshi, 2006: 401). Prosecutorial independence and impartiality represents parts of the Tribunal’s institutional independence and impartiality.

The role of the Prosecutor in Tribunals is to decide which cases to investigate and whether and how to plea-bargain outside the court which means that if states do have control on them, they can influence the selection of the cases or the arguments defended by the prosecutor (Alter, 2006: 336).

Unintended/ Unforeseen costs and benefits

One of the shadow effects of the ICTY and ICTR's creation is that they have engendered the establishment of the Permanent International Criminal Court in 2001. This can be seen as a decision made based upon satisfactory results of the Tribunals as well as the benefits of a permanent international judicial bodies which considerably reduce the costs of establishing a new body context-specific. This development of the international law is also represented by their contribution to "the expansion of the universal jurisdiction jurisprudence in Europe and to the revocation of amnesty laws in Latin America after 1998"(Shany, 2014: 43).

Discussion

From this evaluation of the effectiveness of the ICTR, one could express criticism concerning numerous points. As Alvarez observed, "joint proceedings or trials in Rwandan courts with international observers" could have been less costly and more helpful than "the pursuit of an international political and liberal-legalist agenda" represented by the ICTR. It is also important to observe the ICTR's effectiveness has indeed been constrained in several cases by the Rwandan government's actions.

Yet, one must not forget Rwanda's judicial system was completely disintegrated after the massacre. The ICTR shows imperfections but has also made a crucial contribution to the process of peace building in Rwanda. From the results observed in this paper, the effectiveness of the ICTR to fulfil its task of restoring peace has been reached even though it would not have been possible without the establishment of national judicial bodies such as the Gacaca. Therefore, we

come to the conclusion the ICTR was effective in the peace-building process as a complementary mechanism.

“The mistake is to look at the tribunal as the sole contributor, the sole dynamo for reconciliation and peace. No. This is just part of broader transitional justice measures. This is retributive justice. This conflict has been going on since 1959 for Christ sake; it's 50 years. Prosecuting an odd hand for a hundred perpetrators isn't in itself going to bring around reconciliation and peace. There have to be other mechanisms to redress. What the current coinage I think is restorative justice. We don't have any of that in our tribunal. It's beyond our remit. The whole host of decades of discrimination, victimization – so all we're doing is we're contributing by bringing perpetrators to account, ending the cycle of impunity. We're contributing to the restoration of the rule of law. It's a building block peace building rather than peace making and hopefully reconciliation. I have no empirical evidence of whether we've succeeded in that regard but what I do know and that on the initial objectives, the primary objective of accountability and deterrence I think we've scored very highly.» (Richard Karegyesa, Interview).

Conclusion

This paper had for main argument although International Criminal Courts and Tribunals contribute to peace re-construction, their effectiveness to fulfil their task is critically constrained by structural factors. The first part of this paper formed a theoretical approach that started by analysing what function(s) ICC and ICT had as international judicial bodies. Their contribution to peace building constitutes their primary function. Yet, as the paradigm of delegation of power implies, ICC and ICT were found to have the difficult task to choose between being independent & impartial from the state or being responsive and accountable to states. The last section of the theoretical approach came to the conclusion the autonomy of ICC and ICT was linked with the effectiveness of such bodies but the relation between those two variables appeared change among scholars (in favour of more or less independence). The second part of this paper took the form of a case study with the participation of Richard Karegyesa, Acting Chief of Prosecutions for the ICTR. Several factors evoked in the theoretical approach of this paper were tested using the ICTR through three different approaches. It appears the ICTR had indeed to face difficulties in some cases due to factors such as state cooperation, legitimacy and independence. The original reason for the establishment of the tribunal itself generates doubts as, for certain; it symbolized the guilt of the international community. However, the ICTR did contribute to peace building in Rwanda and demonstrated international law can indeed work in practice. So, are International Courts and Tribunals effective tools for International governance? It would clearly be different from one to another as International judicial bodies stay context-specific mechanisms. Yet this paper hopefully demonstrated such bodies' effectiveness is critically constrained by organizational factors common international courts and tribunals. The way they will approach those issues will be determinant in relation to their effectiveness.

Bibliography

- Abi-Saab, Georges. "Fragmentation or Unification: Some Concluding Remarks." *International Law and Politics* 919th ser. 31 (1999): 919-33. Print.
- Alter, Karen J. "Delegation to International Courts and the Limits of Re-contracting Political Power." *Delegation and Agency in International Organizations*. Ed. Darren G. Hawkins. Cambridge, UK: Cambridge UP, 2006. 312-38. Print.
- Alvarez, J. E. "Nuremberg Revisited: The Tadic Case." *European Journal of International Law* 7.2 (1996): 245-64. Print.
- Alvarez, José Enrique. "Crimes of States/crimes of Hate : Lessons from Rwanda." *Yale Journal of International Law* 2nd ser. 24.Summer (1999): 365-483. Print.
- Andersen, Erik Andre. "History of the Establishment of International Criminal Tribunals." *The Effectiveness of International Criminal Justice*. By Cedric Ryngaert. Antwerp: Intersentia, 2009. 3-19. Print.
- Booth, Cheerie. "– Prospects and Issues for the International Criminal Court." *From Nuremberg to the Hague: The Future of International Criminal Justice*. By Philippe Sands. Cambridge: Cambridge UP, 2003. 157-192. Print.
- Brown, C. "The Inherent Powers of International Courts and Tribunals." *British Yearbook of International Law* 76.1 (2006): 195-244. Print.
- Caron, David C. "Towards a Political Theory of International Courts and Tribunals." *Berkeley Journal of International Law* 24.2 (2006): 401-422. Print.
- Carroll, Christina M. "An Assessment of the role and effectiveness of International criminal Tribunal for Rwanda and the Rwandan National Justice System In Dealing with the Mass Atrocities Of 1994." *Boston University International Law Journal* Fall (2000): 164-194. Print.
- Council, Security. *Statute of the International Tribunal for Rwanda*. Publication. N.p.: United Nations, Article 1-32. Print.
- Frowein, Jochen A., and Rüdiger Wolfrum. "Monitoring Compliance." *Max Planck Yearbook of United Nations Law: Volume 5, 2001*. The Hague: Kluwer Law International, 2001. 41-52 Print.
- Helfer, Laurence R., and Anne-Marie Slaughter. "Towards a Theory of Effective Supranational Adjudication." *The Yale Law Journal* 107 (1997): 273-391. Print.
- Kingsbury, Benedict. "Is the Proliferation of International Courts and Tribunals a Systemic Problem?" *International Law and Politics* 31st ser. 31 (1999): 679-96. Print.
- Majone, G. "Two Logics of Delegation: Agency and Fiduciary Relations in EU Governance." *European Union Politics* 2.1 (2001): 103-22. Print.
- Martinez, Jenny S. "Towards an International Judicial System." *Stanford Law Review* 56.2 (2003): 429-529. JSTOR. Web. 23 Mar. 2015.
- Mitchell, Ronald B. "Oran Young and International Institutions." *International Environmental Agreements: Politics, Law and Economics* 13.1 (2013): 1-14. Print.
- O'connell, Mary Ellen. "Enforcement and the Success of International Environmental Law." *Indiana Journal of Global Legal Studies* 3.1, Symposium: International Environmental Laws and Agencies: The Next Generation (1995): 47-64. JSTOR. Web. 14 Apr. 2015.
- <<http://www.jstor.org/stable/10.2307/20644608?ref=no-x-route:fe3975003b279ed7e6f91347ff7108eb>>.

- Oellers-Frahm, Karin. "Multiplication of International Courts and Tribunals and Conflicting Jurisdiction – Problems and Possible Solutions." *Max Planck Yearbook of United Nations Law* 5 (2001): 67. Print.
- Oxford English Dictionary. Home : Oxford English Dictionary. Oxford Publisher, n.d. Web. 20 Mar. 2015. <<http://www.oed.com/>>.
- Ponte, Carla Del. *Madame Prosecutor: Confrontations with Humanity's Worst Criminals and the Culture of Impunity: A Memoir*. New York: Other, 2009. 1-448. Print.
- Posner, Eric A., and John Yoo. "Judicial Independence in International Tribunals." *California Law Review* 93.1 (2005): 1-74. JSTOR. Web. 28 Mar. 2015.
- Ryngaert, Cedric. *The Effectiveness of International Criminal Justice*. Antwerp: Intersentia, 2009. 1-278. Print.
- Sarooshi, Danesh. "The Powers of the United Nations International Criminal Tribunals." *Max Planck Yearbook of the United Nations Law* 2 (2001): 387-404. Print.
- Sarooshi, Danesh. "The Statute of the International Criminal Court." *International & Comparative Law Quarterly* 48.02 (1999): 1-322. Print.
- Schiff, Benjamin N. *Building the International Criminal Court*. Cambridge: Cambridge UP, 2008. 1-322. Print.
- Schweigman, David. *The Authority of the Security Council under Chapter VII of the UN Charter: Legal Limits and the Role of the International Court of Justice*. The Hague: Kluwer Law International, 2001. 1-354. Print.
- Secretary General. *Report of the International Criminal Tribunal for Rwanda*. Rep. no. A/69/206–S/2014/546. N.p.: United Nations, 2014. 4-17. Print.
- Shany, Yuval. *Assessing the Effectiveness of International Courts*. 1-352. Print.
- Stroh, Dagmar. "State Cooperation with the International Criminal Tribunals for the Former Yugoslavia and for Rwanda." *Max Planck Yearbook of United Nations Law: Volume 5, 2001*. By Jochen A. Frowein and Rüdiger Wolfrum. Vol. 5. The Hague: Kluwer Law International, 2001. 249-83. Print.
- United Nations. "United Nations International Criminal Tribunal for Rwanda." *The ICTR in Brief*. United Nations, n.d. Web. 21 Mar. 2015. <<http://www.unict.org/en/tribunal>>.
- Watts. "Enhancing the Effectiveness of International Dispute Settlement." *Max Planck Yearbook of United Nations Law* 5 (2001): 21-39. Print.
- Young, Oran R. "The Effectiveness of International Institutions: Hard Cases and Critical Variables." *Governance Without Government: Order and Change in World Politics*. By James N. Rosenau and Ernst Otto Czempiel. Cambridge: Cambridge UP, 1992. 161. Print.
- Cover Page Image: United Nations. "United Nations News & Media." ICTR. United Nations, n.d. Web. 18 Apr. 2015. <<http://www.unmultimedia.org/>>.
- Interview with Richar Karegyesa, Acting Chief of Prosecutions for the ICTR, 19-04-2015